
**DEPARTMENT
POLICY****FIP, SDA and MA Only**

If a group member and his/her spouse do **not** live together, a referral to the local county prosecutor may be necessary to establish the absent spouse's responsibility for financial support.

If the absent spouse is also the parent of a group member under age 18, refer him/her to child support; see BEM 255.

FIP Only

Unmarried children under age 18 who act as adult case members **or** grantees may need to be referred to the county prosecutor for possible support action against their parents.

**COUNTY
PROSECUTOR
REFERRALS****FIP, SDA and MA Only**

Refer appropriate cases to the county prosecutor under locally established procedures when he has indicated he will take action under the Poor Law or Status of Minors Act.

Use the DHS-1171-ABS, Absent Spouse/Parent Referral Notice, to refer appropriate cases. Make the referral within 14 days of opening a case **or** whenever a referral is required.

Make a referral:

- When an eligible group member and spouse do **not** live together **and** the absent spouse is **not** the parent of a group member under age 18.
- For **FIP only**, when a minor parent resides away from a parent **and** is the grantee.

Do **not** make a referral when the absent spouse/parent:

- Is complying with a current probate court order for support.
- Is the parent of a group member under age 18 who has been referred for support action (see BEM 255).

- Currently receives FIP, RAP, SDA, MA or SSI.
- Is required to support the recipient spouse via a circuit court order.

Refer to BEM 402, Special MA asset rules, for information regarding absent spouse assets and income.

Take the following actions when a referral has been made:

- Assume court action is inadvisable and stop the process if there is no reply from the prosecutor's office after 30 days.
- Obtain any additional information about the absent spouse if requested.
- Initiate a Poor Person's petition in the county probate court if court action is recommended by the prosecutor's office.
- Budget any resulting court ordered spouse or child support received by the group as unearned income.

REFUSING INFORMATION

FIP, SDA and MA Only

The spouse/minor in the group is ineligible if he/she refuses to provide information about an absent spouse/parent **or** cooperate with the prosecutor.

VERIFICATION REQUIREMENTS

FIP, SDA and MA Only

The DHS-1171-ABS, may be used to gather information about an absent spouse when required under the local procedure with the prosecutor's office.

LEGAL BASE

FIP

P.L. 104-193 of 1996
P.A. 280 of 1939, as amended
MCL 400.1 - .9
MCL 722.3

SDA

Annual Appropriations Act

Michigan Administrative Code; R 400.3151 – 400.3180

MA

42 CFR 433.147

42 CFR 435.821-.822

MCL 400.106

MCL 401.1-.9